

NON-DISCLOSURE AGREEMENT



Our mutual objective under this Non-Disclosure Agreement (NDA), effective as of February 19, 2021, is to provide protection for TBC –The Boring Company's confidential information (Confidential Information). Each of us agrees that the following terms apply when TBC – The Boring Company (Discloser) discloses Confidential Information to you, Michael Jatczak of Traylor Brothers (Recipient). Recipient may not substitute other employees or agents for receipt of Confidential Information, even if such persons have the same job title or function.

Obligations. The Recipient agrees that:

- a. it shall use the Discloser's Confidential Information solely for the purpose for which it was disclosed, and
- b. **it is prohibited from mentioning Discloser or revealing this relationship to third parties, including in marketing materials, press releases, interviews, or other public forums.**

Exceptions to Obligations. The Recipient may disclose, publish, disseminate, and use Confidential Information that is:

- a. already in its possession without obligation of confidentiality;
- b. developed independently;
- c. obtained from a source other than the Discloser without obligation of confidentiality; or
- d. publicly available when received, or subsequently becomes publicly available through no fault of the Recipient.

The Recipient may disclose Confidential Information only to the extent required by law, and Recipient will give the Discloser prompt notice to allow the Discloser a reasonable opportunity to obtain a protective order.

Disclosure to Recipient. Confidential Information may be disclosed in multiple ways, including but not limited to: in writing, by delivery of items, by a visit to Discloser's facilities, by initiation of access to Confidential Information such as may be in a database, or by oral or visual presentation. Confidential Information may or may not be marked with a restrictive legend of the Discloser. If Confidential Information is not marked with such legend or is disclosed orally, it may be identified as confidential at the time of disclosure, or in a follow up writing, or may be information that a reasonable person would recognize from the surrounding facts and circumstances to be proprietary or confidential.

Confidentiality Period. Confidential Information disclosed under this NDA will be subject to this NDA for so long as such information remains confidential or proprietary.

No Rights or License. Neither this NDA nor any disclosure of Confidential Information made under it grants the Recipient any right or license under any trademark, copyright or patent now or subsequently owned or controlled by the Discloser.

Export Control. Any conditions on the use and disclosure of information in this NDA shall be subject to and in addition to those imposed by applicable export control laws and regulations. Nothing in this NDA shall be deemed or interpreted to authorize any export of Confidential Information.

Termination. This NDA shall terminate after ten (10) years from its effective date. Any terms of this NDA, including the Confidentiality Period, which by their nature extend beyond its termination remain in effect until fulfilled, and apply to respective successors and assignees. Upon request from the Discloser, the Recipient will return all Confidential Information.

Remedies. We both expressly agree that monetary damages would be inadequate to compensate the Discloser for any breach of this NDA and that any such breach shall cause irreparable injury to Discloser. In addition to any other remedies that may be available, Discloser shall be entitled to obtain injunctive relief against the continued or threatened breach of this NDA without proving actual damages. **Moreover, Discloser shall be entitled to liquidated damages of \$1,000,000 for Recipient's mention of Discloser or disclosure of this relationship in any way, including in marketing materials, presentations, press releases, interviews, or other statements, without Discloser's written consent, in each case such amount not intended to be a penalty and which the parties agree represents a fair and reasonable estimate of the damages caused by such breach.**

General.

- a. This NDA does not require either of us to disclose or to receive Confidential Information, perform any work, or enter into any business engagement or other agreement.
- b. Neither of us may assign, or otherwise transfer, its rights or delegate its duties or obligations under this NDA without prior written consent. Any attempt to do so is void.
- c. The exchange of Confidential Information under this NDA does not create any joint relationship, or authorize either of us to act or speak on behalf of the other.

- d. Only a written agreement signed by both of us can modify this NDA.
- e. The laws of the State of California shall govern all of our respective rights, duties, and obligations arising from, or relating in any manner to, the subject matter of this NDA, without regard to conflict of law principles. All disputes arising under this NDA shall be adjudicated by arbitration.
- f. This NDA is the complete agreement regarding disclosures of Confidential Information, and replaces all prior oral or written communications, or agreements between us on the subject matter hereof.
- g. Recipient agrees not to solicit or assist others in soliciting Discloser's employees to terminate their employment with Discloser.

Each of us accepts the terms of this NDA by signing below. Any reproduction of this NDA made by reliable means (for example, electronic image, photocopy or facsimile) is considered an original and all disclosures of Confidential Information under this NDA are subject to it.

On behalf of:

TRAYLOR BROTHERS

TBC – THE BORING COMPANY

By: _____

Name: Michael Jatczak

Title:

By: _____

Name:

Title:

**Signature page to
NDA**